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Town of Hampton



August 24, 2026

Present: Carleigh Beriont, Chair
Jeffrey Grip, Vice-chair
Amy Hansen
Donald Bliss
Charles Rage
James Sullivan, Town Manager

Chair Beriont opened the meeting at 7:00 p.m. [-1:38]

SALUTE TO THE FLAG

I. Public Comment [Time limitation of three (3) minutes] [-1:37]

John Nyhan, President, Hampton Area Chamber of Commerce, 47 Winnacunnet Road. Speaking about commercial trash from a business perspective, the Board should consider two things: the amount of taxes that those businesses pay the town and the amount of Rooms and Meals tax that those businesses brought in.

Brian Warburton, 24 Sanborn Road. As a former Select Board member, and who ran the State Park; on the issue of commercial trash collection, I can speak that it should stay the same; spoke in defense of Sel. Rage on the collection issue; Town Meeting has voted four times in the past to keep thing as they are, and to have a clean beach.

Bob Preston, 339 Ocean Blvd. Spoke about Nick Bridle's article, the comments and points he made; the \$500,000 that is spent on collection is equivalent to having two big condos funding it; concerned about the assessments on condos, this subject should be voted on at the ballot, and the Board should not vote.

Chair Beriont explained that there was a Substack post written by Representative Bridle in opposition to changing the policy.

II. Announcements and Community Calendar [-1:30]

Sel. Grip: The Planning Board is looking for alternates, if interested please contact the Planning Office.

Sel. Rage: Key West Days is this week, a lot of great talent, definitely worth coming down.

Sel. Hansen: Great opportunities over the weekend, attended the Blues Brothers cover band; the Historical Society's Textiles and Treasures event; the Longest Table, sponsored by Hampton Rotary, and the Seafood Festival is coming up; resident tickets are on sale at the Chamber; School starts next Tuesday the 1st.

Chair Beriont: Discussed a proposal concerning the issue of the recusal of Sel Rage from the deliberations and votes concerning the cost recovery process for commercial trash and recycling pickup.

“Solid Waste Recusal Issue:

In my opinion, the Select Board should not require Selectman Rage to recuse himself from the solid waste deliberations and votes for the following reasons:

1. Although the establishment of a cost recovery process for commercial trash and recycling pickup will impact Selectman Rage's businesses, it will affect all businesses in the commercial trash collection district. Some will be impacted more than Selectman Rage; some will be affected less. Selectman Rage will not obtain a benefit that is unique to him, his family, or his businesses. All members of the Board are Hampton taxpayers and will be personally impacted by the decision, yea or nay, to establish a cost recovery process.
2. Selectman Rage has been open and forthcoming about his interest in this topic and his desire to represent the interests of the Hampton Beach business community. This is no surprise, and he does not wield any special powers as one of five members of the Select Board.
3. Hampton's voters were well aware of Selectman Rage's connection to and representation of the Hampton Beach business community and have elected him to three (3) terms on the Select Board. It would be unfair to those voters to silence his voice on this important issue.
4. The Select Board is most effective when a wide range of opinions and ideas are presented and debated through civil discourse before a decision is made. As much as possible, all duly elected members of the Select Board should participate”.

The Board had a lengthy discussion on the points made by Chair Beriont and agreed with the points. The Ethics Policy is to prevent corruption and to ensure that no member gets an undue favorable treatment, either financial or otherwise; class recusal or exception clearly states that someone who is part of a large class of citizens does not need to recuse, unless there is a specific issue that applies solely to him or her, this is not the case in Sel. Rage's situation. Consensus of the Board is that Sel. Rage should not be recusing himself from the policy deliberations.

III. Approval of Minutes [-1:24]

1. August 10, 2026

Page 3: No Turn on Right, change “Right” to “Red”.

Last page: Remove extra “P” from “Sel. Gripp”.

Sel. Rage MOTIONED to APPROVE the minutes of August 10, 2026, as corrected, SECONDED by Sel. Grip. Motion passed 5-0-0.

IV. Consent Agenda [-1:38]

1. Donation: Tree lighting Service Credit Union for \$1,200

Sel. Hansen MOTIONED to MOVE the Consent Agenda, SECONDED by Sel. Grip. Motion passed 5-0-0.

V. Appointments [-1:23]

1. Cheryl Hildreth, Town Clerk
 - a. Election Preparation

TC Hildreth: The State Primary Election is Tuesday, September 8th, at the Winnacunnet High School cafeteria, polls open at 7:00 a.m. and close at 8:00 p.m. If interested in assisting at the

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polls, please contact the office at (603) 926-0406 or email townclerk@hamptonnh.gov. Town Clerk's Office will close at 12:00 p.m. on Wednesday, August 26th for election training session with the Secretary of State's Office. Last day to register to vote at the Town Clerk's Office is Friday, August 28th; and with the Supervisors of the Checklist Monday, September 1st, 9:00 a.m. to 9:30 a.m. in the Town Office lobby; can register to vote on election day at the polls. A driver's license, passport, or a Federal ID is required to register to vote, to receive an absentee ballot and to vote on election day, School IDs are no longer accepted. Absentee Ballots must be received by 5:00 p.m. on September 8th. Please call the Town Clerk's Office on what is required for both. On Labor Day, September 7th, the Town Clerk's office will be open between 3:00 p.m. and 5:00 p.m. to give and receive absentee ballots. Ballot testing will be on Tuesday September 1st.

Discussion: A written continuity of operations plan for the election should be developed before the November elections.

2. Kristi Pulliam, Finance Director
a Monthly Financials [July-2026](#)

Dir: Pulliam: July's revenue totaled \$5,656,845; lower than July's 2025 revenue of \$5,724,534. Expenditures target is 58.33%. In relation to the budget, spent \$20,956,322 with open purchase orders totaling \$258,587. Warrant Articles have spent \$2,138,023 with open purchase orders totaling \$580,957. Currently under budget by 3.15% or \$1,197,517. Expenditure breakdown has wages and benefits the two largest pieces. Funds outside the General Fund: Fund 24 \$200,288, Fund 25 \$845,229, Fund 26 \$369,683, Fund 27 \$1,143,097, Fund 41 \$39,015, Wastewater Development Charge Fund \$375,266, Fund 500 - Grant Fund Revenues \$86,805, Expenses \$1,050,389.

Discussion: For budget guidelines the Town Manager and Finance Director's target is 3% to 5% at the end of the year; the budget is running tight; budget revenue protections are expected to be lower due to lower parking lot revenue.

Sel. Grip MOTIONED to ACCEPT the July Financials, SECONDED by Sel. Rage. Motion passed 5-0-0.

3. Draft Commercial Refuse Collection Policy

TM Sullivan: Using relevant statutes to define authority, purpose, and mechanical/operational processes for commercial curbside trash collection. Statutes grant the Board authority to manage trash collection, including commercial pickups. Three cost scenarios were developed; policy details how billing, operations, and contingencies will function; policy includes procedures for non-payment and operational breakdowns. Solid Waste Chapter 761 definitions were used for the policy; current list of commercial entities is between 199-217; Businesses will be registered; new colored carts will be issued to identify the businesses from residential; Billing would be in arrears to account for missed pick-ups.

The Board engaged in a lengthy discussion on the draft policy; rate-based billing on the number of carts issued; concerns raised as to how to identify residential from commercial entities; seasonal weekly rentals versus non-seasonal rental units, whether they are considered commercial or residential; how to implement the policy fairly.

Chair Beriont: The Board will at the next meeting revisit the discussion to institute a policy that establishes uniform requirements for the procedures, provision, administration, billing,

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collection, and enforcement of municipal curbside refuse collection services provided to commercial businesses.

Discussion: Incorporation of the suggestions made tonight into the policy; to separate the fee setting issue from the discussion on the policy; to finalize the policy for public comment; whether the Board wants to vote to implement the policy or bring it to Town Meeting.

VI. Town Manager's Report [-35.20]

1. 2025 Abatement: Barn Realty 724 Lafayette Road

TM Sullivan: Two issues, there was a permit, but final inspection was not done by Building; it was communicated to Assessing, but Assessing did not record it; both issues are being dealt with; a process is being developed for the closure of permits; and applicants should call for the closure of their permits.

Sel. Bliss MOVED to APPROVE the abatement recommendation for 724 Lafayette Road for tax year 2025 in the amount of \$3,617.81 plus statutory interest, SECONDED by Sel. Grip. Motion passed 5-0-0.

2. Primex Goal Setting Report

TM Sullivan: The report will be put up online. Corrections to the typos will be made.

3. Cost of illumination of "No turn on Red"

TM Sullivan: The Board received a memo from Dir. Hale on that subject.

4. Casella Collection Update

TM Sullivan: The Board received a memo from Dir. Hale; it has been going well and has helped free up employees to do other work.

5. NH DOT Bridge Lighting Update

TM Sullivan: Had an informal discussion with our Executive Councilor Stevens regarding the bridge lighting and asked for a progress report, Councilor Stevens indicated it is still in discussion, and that the issue comes down to maintenance, and I shared with her that the Board has not closed that door and is open to discussions.

6. North Hampton Water Commission Meeting.

TM Sullivan: The meeting has been cancelled and postponed to September.

7. One-day Entertainment License

TM Sullivan: The Corner Cantina, part of Key West Days at the Beach, is requesting the license for three hours (3:00 p.m. -6:00 p.m.) on Friday.

Sel. Hansen MOVED to APPROVE the One-day Entertainment License for Corner Cantina on 08/28 as part of the Key West Days, SECONDED by Sel. Grip. Motion passed 5-0-0.

8. Seafood Festival Sidewalk Vendor Permit

TM Sullivan: The Sidewalk Vendor's Permit allows businesses to put their wares out on the sidewalk in the main area, there is no issue with that because the area is closed off. We have received permit requests from businesses outside of the closed off area. The sidewalks are necessary for the people traversing in that area and the road is not closed in the area. The

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closed off area is between 113 Ocean Blvd. and 285 Ocean Blvd, H Street north to the barrels at Ashworth Ave.; if the addresses are inside that area they are approved, outside of that area they are not.

9. L Street Noise Complaints

TM Sullivan: Captain Azaria has been dealing with complaints and compliance issues involving the L Street Tavern. The Police have conducted decibel readings in response to noise complaints, and the readings were within parameters; no noise violations have been issued. There is frustration over repeated warnings without enforcement. An issue has been observed, bands are bringing and using their own sound equipment, which violates the conditions set by the Board. The Police Chief has authority to revoke permits if substantial violations occur. The Police have been asked to do incident reports of what they are observing. If this continues, the issue may be brought back to the Board for action.

VII. Committee Reports [-25.40]

Sel. Grip: Planning Board is wrapping up the Housing Opportunity Grant (HOP); discussed covenants for workforce housing, adding requirements to properties in the Town center district or one half mile within one half mile of the Greenway, flexibility with sizing housing units; applied for \$5,000 of remaining HOP funds; CIP Committee has met and have made revisions to the plan.

Sel. Bliss: 79-E Committee, close to wrapping up the work and to come before the Board with the presentation. Worked on the Coastal Resilience Zone; public benefits, tax abatements for improvements to a property in the Coastal Resilience Zone; at the next meeting will be a discussion on what needs to be brought forward as a warrant article versus what can be handled by the Select Board. Heritage Commission: the WHATZIT-WHEREZIT Map is being distributed around town; discussed doing a third issue as a potential Eagle Scout project; Commission will be documenting the historic features of the Casino structure; status of the Blacksmith Shop.

Sel. Hansen: Hampton Village District. Elvis is there tonight, Key West Days is this week, the Circus will be here September 5th, the LED Show is on the 19th and the Fire Show after that.

VIII. Old Business [-13.00]

1. Fire Truck Bid Award

Discussion: The 2025 Warrant Article (11) authorized \$1,800,000 for a 7-year lease purchase, and the maximum first year's payment is \$308,712. In response to the RFP, received from three dealers four different ladder truck proposals. Greenwood Emergency Vehicles, Allegiance Fire & Rescue, and Bulldog Fire Apparatus. Each of the proposals were compliant with the RFP specifications. Delivery time of 18-months, potential opportunity to purchase a similar truck being built as the prospective purchaser pulled out.

Sel. Bliss MOTIONED to APPROVE the purchase of the E-One HR 100 100-foot aerial, as priced by Greenwood Motors, for \$1,551,829, funding through Community Leasing Partners, which has been awarded through Sourcewell, the maximum first-year cost would be \$308,712, SECONDED by Sel. Hansen. Motion passed 5-0-0.

IX. New Business [-07.46]

1. Ordinance Correction Section 805-21.1 and Section 805-41 B. Fire Lanes
 - a Remove Greene Street from Section 805-21.1 Hampton Resident Parking
 - b Re-affirm on Greene Street “No Parking, Fire Lane, and Tow Zone on both sides of the roadway for the entire length of the street”

Discussion: The area is the neighborhood of Meadow Pond, and King’s Hwy, the DPW Director recommends these changes. The signage was inconsistent. Changes are to correct the spelling of Greene Street, removal of Greene Street from Hampton Resident Parking, Greene Street is “No Parking, Fire Lane, and Tow Zone on both sides, these changes will bring Greene Street into compliance with what should be there.

Sel. Hansen MOTIONED to APPROVE the removal of Greene Street from Section 805-21.1 Hampton Resident Parking, and re-affirm that Greene Street is “No Parking, Fire Lane, and Tow Zone on both sides of the roadway for the entire length of the street”, SECONDED by Sel. Grip. Motion passed 5-0-0.

Sel. Hansen: I attended the Meadow Pond Drainage Project Ribbon Cutting ceremony with Sel. Grip and the Town Manager and I would like to commend all the people who are involved, including the residents of the neighborhood; it took about 20 years to have it come to completion; it shows that with community activism, a difference can be made.

TM Sullivan: Thank you to everyone for their support in approving it, and the work of the Executive Councilor Stevens; when the town received the call from DES, telling us the money for the project was gone and within a half hour another call from our district Executive Councilor telling us that was not going to happen. An Executive Councilor is a powerful position in this state; there are five and are essentially a check on the Governor’s power. Councilor Stevens knew the details in that there was a project in the district that had 1.3 million, and that money was going to be allotted elsewhere, she made that project happen. We are applying for the Opportunity Zone program, it is for economic development, the program gives incentives to businesses to develop in economically depressed areas.

X. Closing Comments [-01.09]

Sel. Grip: The report from the facilitator planning session, would request that at the next meeting we decide what we want to do with each of the things that were suggested we do.

XI. Adjournment [-00.31]

Sel. Rage MOTIONED to ADJOURN the public session at 8:38 p.m., SECONDED by Sel. Bliss. Motion passed 5-0-0.

Thank you Channel 22.

Carleigh Beriont, Chair

Minutes prepared by K. Ostman